

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #01	CCRB Case #: 201900421	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/11/2019 3:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/25/2021	Precinct: 73		
Date/Time CV Reported Tue, 01/15/2019 1:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/15/2019 1:25 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Marlon Sanchez	23417	951199	073 PCT
2. SSA Oscar Nunez	03505	935412	073 PCT
3. POM Henry Rivera	03959	940639	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Henry Rivera	Abuse: Police Officer Henry Rivera threatened to damage § 87(2)(b)'s property.	A . Unsubstantiated
B . POM Henry Rivera	Abuse: Police Officer Henry Rivera threatened to arrest § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . POM Henry Rivera	Abuse: Police Officer Henry Rivera entered § 87(2)(b) in Brooklyn.	C . Unsubstantiated
D . POM Henry Rivera	Abuse: Police Officer Henry Rivera searched § 87(2)(b) in Brooklyn.	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On January 15, 2019, § 87(2)(b) filed this complaint on behalf of § 87(2)(b) via the CCRB intake phone line.

On January 11, 2019, at approximately 3:45pm, PO Henry Rivera, Sgt. Oscar Nunez, and PO Marlon Sanchez, all of the 73rd Precinct, arrived at § 87(2)(b), in Brooklyn. PO Rivera allegedly stated through the door, “If you don’t open the door, we’re going to break it down and arrest everyone inside the apartment” (**Allegations A and B: Abuse of Authority** § 87(2)(g) PO Rivera, followed by Sgt. Nunez and PO Sanchez then entered § 87(2)(b), in Brooklyn (**Allegation C: Abuse of Authority** § 87(2)(g)). PO Rivera, Sgt. Nunez, PO Sanchez then searched § 87(2)(b) s son’s § 87(2)(b) § 87(2)(b) old bedroom (**Allegation D: Abuse of Authority** § 87(2)(g) § 87(2)(b) was not home at the time of this incident.

BWC footage from PO Sanchez was provided to the investigation (Board Review 01).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Henry Rivera threatened to damage § 87(2)(b) s property.

Allegation (B) Abuse of Authority: Police Officer Henry Rivera threatened to arrest § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) testified that she was inside her apartment at § 87(2)(b) in Brooklyn, when she heard officers knock on her door. She then heard PO Rivera state, through the door, “If you don’t open the door, we’re going to break it down and arrest everyone inside the apartment (Board Review 02).

§ 87(2)(b) testified that, while in § 87(2)(b) in Brooklyn, she heard a knock on the front door. She heard an officer state through the door that it was NYPD. § 87(2)(b) then opened the door. An officer, § 87(2)(b) could not tell who, told § 87(2)(b) that the officers were looking for § 87(2)(b) and needed to search the apartment. The officer also mentioned receiving a report that there was a gun inside the apartment. He further stated that if they did not let the officers in, they would have to break the door down and everyone in the apartment could be arrested (Board Review 03).

PO Sanchez’s BWC footage begins after the officers have entered the apartment. Thus, any statements made prior to the entry are not captured. At 15:47:31, while explaining the consent to search form to § 87(2)(b) PO Rivera states, “This way, we recover it, no one gets in trouble, no one is in cuffs.” At 15:49:00, as § 87(2)(b) is getting ready to sign the form, PO Rivera tells § 87(2)(b) “do it this way instead of doing the whole big thing. Booming in doors and stuff” (Board Review 01).

PO Rivera had no specific recollection of this incident. When presented with video footage he was not able to provide additional details about parts of the incident that were not depicted. PO Rivera denied threatening to arrest everyone in the apartment. He also denied threatening to

knock § 87(2)(b)'s door down. When presented with the video footage, PO Rivera testified that he was explaining the consent to search form and did not know specifically what he was referring to when he was referencing people getting in trouble (Board Review 04).

PO Sanchez and Sgt. Nunez both testified that they could not recall if PO Rivera said anything through the door prior to opening it. Neither could recall hearing PO Rivera threaten to knock the door down or arrest everyone inside. Neither officer knew what PO Rivera was referring to in the video when he referenced “this way no one gets in trouble, no one is in cuffs” (Board Review 05).

§ 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer Henry Rivera entered § 87(2)(b)

in Brooklyn.

Allegation (D) Abuse of Authority: Police Officer Henry Rivera searched § 87(2)(b)

in Brooklyn.

§ 87(2)(b) testified that she opened the door and observed PO Rivera, Sgt. Nunez, and PO Sanchez. PO Rivera told her that they got a call saying there was a gun in the house and they had to search it. § 87(2)(b) did not say anything in response. She was standing to the side of the door. The officers walked into the apartment. § 87(2)(b) denied telling them that they could come inside. She testified she was under the impression that they had to come inside. Once inside, the officers immediately went to § 87(2)(b)'s bedroom and searched it. They looked through drawers, bins of clothing, the closet, and the bed and bed frame. § 87(2)(b) was then provided with a paper that said “permission to search.” An officer told her that if she did not sign it, they would break the door down and arrest everyone inside. § 87(2)(b) signed the paper (Board Review 02).

§ 87(2)(b) testified that § 87(2)(b) continued to ask why they had to come inside and she was told that there was a report of a gun inside. PO Rivera then asked § 87(2)(b) if they could come inside and she said yes. The officers immediately went to § 87(2)(b)'s room and searched it. When the officers were finished searching, PO Rivera gave § 87(2)(b) a piece of paper and told her she had to sign it. He explained to her that it gave the officers permission to search the house. PO Rivera did not say anything else about the document. § 87(2)(b) signed it (Board Review 03).

As stated above, PO Sanchez's BWC footage begins once the officers are inside the apartment and thus does not capture the officers' initial entry. At 15:47:28 in PO Sanchez's BWC, PO Rivera explains the consent to search form to § 87(2)(b). PO Rivera does not tell her that she has to sign it nor that the officers have to search the apartment. At 15:49:00, as § 87(2)(b) is getting ready to sign the form, PO Rivera tells § 87(2)(b) “do it this way instead of doing the whole big thing. Booming in doors and stuff.” After § 87(2)(b) signs the form, the officers search one bedroom in the apartment (Board Review 01).

No relevant event pertaining to this incident was identified.

As stated above, PO Rivera had no specific recollection of this incident. § 87(2)(g)

PO Rivera did not know why or how the officers came to enter the apartment. He did not know what information led the officers to that apartment, nor specifically what they were looking for. He did not know why they asked her to sign the consent to search form. He testified that, based on the video footage, they were searching the apartment pursuant to the consent to search form (Board Review 04).

§ 87(2)(g)

Both testified that they responded to the location based on information that PO Rivera had but did not provide to them. Sgt. Nunez testified that he believed there had been a call reporting a gun in the apartment, but did not know when or how the call came in. PO Sanchez only knew that they were there for something related to a gun. Neither were provided any additional information during the course of the incident (Board Review 05, 06).

§ 87(2)(g)

Officers may enter a home pursuant to consent. Consent may be implied from physical actions, including stepping aside from a door to admit officers to enter. People v. Davis, 120 A.D.2d 606 (2d Dept 1986) (Board Review 07). Consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. People v. Gonzalez, 39 N.Y.2d 122 (1976) (Board Review 08).

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (Board Review 11).
- This is the first complaint to which § 87(2)(b) has been a party (Board Review 12).
- This is the first complaint to which § 87(2)(b) has been a party (Board Review 13).
- PO Rivera has been a member-of-service for 23 years and has been a subject in 11 CCRB complaints and 19 allegations, of which four were substantiated:
 - Case 201602547 involved a substantiated allegation of frisk against PO Rivera. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - Case 201802785 involved substantiated allegations of physical force, retaliatory arrest, and interference with a recording device against PO Rivera. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.
 - § 87(2)(g)
- Sgt. Nunez has been a member-of-service for 14 years and has been a subject in five CCRB complaints and 25 allegations, of which four were substantiated:

- Case 201604051 involved substantiated allegations of frisk and three stops against Sgt. Nunez. The Board recommended Command Discipline A and the NYPD imposed Formalized Training.
- § 87(2)(g) [REDACTED]
- PO Sanchez has been a member-of-service for seven years and has been a subject in two prior CCRB complaints and two allegations, of which one was substantiated:
 - Case 201510149 involved an allegation of refusal to provide name and shield number against PO Sanchez. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of June 19, 2019, the New York City Office of the Comptroller has no record of Notices of Claim being filed in regards to this complaint (Board Review 14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 1

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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